

Thus, neither LARA nor HARKNESS would appear to be proper subclass representatives for an Unauthorized Deductions Subclass amended to be defined as those against whom utilities were improperly deducted from their security deposits.

With there appearing to be no reasonable possibility that Plaintiffs could amend the first amended complaint to allege an Unauthorized Deductions Subclass for tenants against whose security deposits utilities were deducted, the court grants Defendants' motion to strike all allegations regarding the Unauthorized Deductions Subclass without leave to amend.

Defendants have 10 days to file an answer to the remainder of the first amended complaint.

EBONAE WEBB vs. PACE SOLANO INC.
Case No. CU26-00230

Motion to Strike Punitive Damages and Other Irrelevant Allegations from Plaintiffs' Complaint

TENTATIVE RULING

Preliminarily, the court has earlier advised Plaintiff EBONAE WEBB ("WEBB") that the claims she has asserted on behalf of her minor children can only be pursued by appointment of a guardian ad litem, and that this guardian must be represented by a licensed California attorney. Yet WEBB, in pro per (without an attorney) continues to file, or to attempt to file, documents with the court on behalf of the minor children.

Regarding the present motion by Defendants to strike Plaintiffs' complaint, WEBB presented for filing a first amended complaint, apparently in an attempt to render moot the motion to strike. C.C.P. §472(a) authorizes, by the deadline for filing opposition to a motion to strike, a plaintiff to file and serve a first amended complaint without leave of court. However, with no proof of service filed to show timely service of the first amended complaint by that deadline, and the assertion by WEBB still in pro per of claims on behalf of her minor children, without appointment of a guardian ad litem represented by a licensed California attorney, that document was rejected for filing.

WEBB thereafter, after the nine court days before hearing deadline set by C.C.P. §1005(b), filed opposition to this motion to strike. However, as noted, this opposition is late. In addition, no proof of service was filed, to show that a copy of the opposition papers was served on Defendants' counsel. For these reasons, the court has not considered the opposition papers.

A pro per litigant is not entitled to any special consideration.

Pro. per. litigants are held to the same standards as attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985 [35 Cal. Rptr. 2d 669, 884 P.2d 126] ["A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation."]; accord, *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1281 [111 Cal. Rptr. 2d 439] (dis. opn. of Bedsworth, J.) [pro pers should not be treated the same, "only different"].) *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.

Defendants' motion to strike primarily sought to strike all punitive damage allegations in the complaint, and secondarily to strike reference to an Insurance Code statute, and all claims as against Defendant KELLY HANSON ("HANSON").

Civil Code §3294 authorizes recovery of punitive damages upon "clear and convincing" evidence of "oppression, fraud or malice". 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §6:156, p. 61.

To properly allege punitive damages, a plaintiff must allege specific facts to support them, not merely conclusory words like "oppression, malice or fraud". 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §6:158, p. 62.

To survive a motion to strike, on a claimed basis of malicious conduct, more than mere negligence or even recklessness in a motor vehicle accident situation must be alleged. A plaintiff must allege facts sufficient to demonstrate "conscious disregard of safety".

In order to justify an award of punitive damages, the defendant must be guilty of oppression, fraud or malice. He must act with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights. In a personal injury action, conscious disregard of safety is an appropriate description of the animus malus which may justify an exemplary damage award when nondeliberate injury is alleged. *Magallanes v. Superior Court* (1985) 167 Cal.App.3d 878, 883.

The allegations in the complaint are of a garden-variety motor vehicle accident caused by negligence.

The complaint's allegations of fraud do not adequately support any punitive damage claim. These allegations are not made with particularity, to include the specific facts showing defendant making a knowingly false representation, intended to deceive or induce reliance, causing justifiable reliance and resulting damages. *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. There is also no third-party right to sue a tortfeasor's insurer (or a tortfeasor directly) for violation of Insurance Code bad-faith claims settlement practices. *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287, 304-305. Nor does the complaint allege any resulting damages from the alleged post-accident conduct of the Defendants.

The court therefore strikes all punitive damage allegations.

The court also strikes all allegations, and the entirety of the complaint, as to Defendant HANSON.

Defendants' motion included an admission that PACE would be liable for any negligence on the part of FAHEY, the driver involved in the subject motor vehicle accident. Thus, no cause of action against HANSON would be proper for negligent hiring, training, supervising and/or retaining of FAHEY. Diaz v. Carcamo (2011) 51 Cal.4th 1148. Furthermore, it is the employer, not a supervisor, who faces possible liability for the actions of an employee.

The doctrine of respondeat superior is not applicable to the relationship between a supervisor and his subordinate employees. The supervisor occupies an economic and legal position quite different from that of the employer. It is not the supervisor's work that is being performed, nor does he share in the profits which the employees' conduct is designed to produce. In the usual situation, furthermore, he, like his subordinates, is a wage earner, and he is seldom able to respond in damages to an appreciably greater extent than they. For these reasons, the law has shifted financial responsibility from the supervisor, who exercises immediate control, to the employer, who exercises ultimate control and for whose benefit the work is done. (Bank of California v. Western Union Telegraph Co., 52 Cal. 280, 288-292.) Section 2351 of the Civil Code codifies this principle and has been uniformly interpreted to exempt superior employees from vicarious liability to third persons for the tortious conduct of subordinates. (Hilton v. Oliver, 204 Cal. 535, 539 [269 P. 425, 61 A.L.R. 297]; Handley v. Lombardi, 122 Cal.App. 22, 29 [9 P.2d 867]; Barton v. McDermott, 108 Cal. App. 372, 384 [291 P. 591]; Los Angeles v. Los Angeles Pacific Navigation Co., 84 Cal.App. 413, 419 [258 P. 409]. See, also, Restatement, Agency, section 358(1); Ellis v. Southern Railway Co., 72 S.C. 465, 473 [52 S.E. 228, 2 L.R.A.N.S. 378]; 61 A.L.R. 290.) Malloy v. Fong (1951) 37 Cal.2d 356, 378-379.

See also C.A. v William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 871 [potential liability of school administrators for the negligent hiring or supervision of teachers and guidance counselors because of the existence of a special duty between the administrators and the students]; Taylor-El v. Cisneros (E.D.Cal. 2023) 2023 U.S.Dist.LEXIS 239052, *15 [special duty between supervisor and tort victim must exist for personal liability of supervisor, as "California law does not recognize a general duty of care on the part of supervisors with respect to negligent hiring, retention, or training"].

No potential for liability for HANSON arises out of the 7th cause of action for intentional infliction of emotional distress.

The elements of an intentional infliction of emotional distress cause of action include extreme and outrageous conduct by the defendant causing severe emotional distress. Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 (superseded by statute on other

grounds, as stated in *Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 699).

The complaint contains only vague allegations that HANSON “engaged in extreme and outrageous conduct by knowingly making, adopting, and relying on false accusations that Plaintiff fabricated or misrepresented a motor-vehicle collision, despite possessing dispatch recordings and corroborating evidence confirming the collision occurred and was reported” [Complaint, ¶43].

As earlier noted, such post-accident conduct by a supervisor in assessing claims arising of a motor vehicle accident is not actionable.

With no causes of action properly pled against HANSON, the court grants the motion to strike the entirety of the complaint as to claims against her.

The motion to strike is thus granted as stated above, without leave to amend.

With no demurrer filed by the other Defendants to any specific causes of action in the complaint, their answer(s) to the complaint, inclusive of all causes of action alleged against them in the complaint, will be due within 30 days.

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